

The U.P. Secondary Education Service Commission (Procedure and Conduct of Business) Regulations, 1983

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The U.P. Secondary Education Service Commission (Procedure and Conduct of Business) Regulations, 1983

UTTAR PRADESH

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The U.P. Secondary Education Service Commission (Procedure and Conduct of Business) Regulations, 1983

Rule

THE-U-P-SECONDARY-EDUCATION-SERVICE-COMMISSION-PROCEDURE-AND-CONDUCT-OF-BUSINESS-REG
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The U.P. Secondary Education Service Commission (Procedure and Conduct of Business) Regulations, 1983

Published vide Notification No. S.E.C. /2/ Adhi 8 (1) 83-84 Allahabad dated 22nd August, 1987

1.

Short title.

(1)

These regulations may, be called the Uttar Pradesh Secondary Education Service Commission (Procedure and Conduct of Business) Regulations, 1983.

(2)

They shall come into force at once.

2.

Definition.

- In these regulations, unless there is anything repugnant in the subject or context,-

(a)

'Chairman's means the Chairman of the Commission and includes any other person performing, in the absence of the Chairman, for the time being, the functions of the Chairman.

(b)

'Commission' means the Uttar Pradesh Secondary Education Service Commission established under Section 3 of the U.P. Secondary Education Service Commission and Selection Boards Act, 1982.

(c)

'Committee' means a committee constituted by the Commission from among its Members.

(d)

'Examiner' includes joint examiner and co-examiner.

(e)

'Government' means the Government of Uttar Pradesh.

(f)

'Interview' includes viva-voce or personality test.

(g)

'Member' means a person appointed as Member of Commission under Section 4 of the Act and includes its Chairman.

(h)

'Officer' means Secretary, Deputy Secretary, Accounts Officer and such other officers as are appointed as such by the State Government or the Commission.

(i)

'Presiding Member' means the Member who presides in Interview Board.

(j)

'Secretary' means Secretary of the Commission appointed by the State Government from time to time.

3.

Meetings.

(1)

Unless otherwise decided by the Commission, the meeting of the Commission shall ordinarily be held on Thursday and if it happens to be a non-working day, on the working day immediately preceding Thursday. An extraordinary meeting may be called at any time if exigency arises.

(2)

(a)

Notices of the meetings shall be issued by the Secretary.

(b)

The Notice of the meetings shall ordinarily be accompanied with a short note (Synopsis) relating to each item on the Agenda of the meeting.

(3)

The Agenda and the synopsis on the items of the Agenda shall be sent to Members as far as possible at least two days in advance after the same have been approved by the Chairman. The Secretary shall ensure that items suggested by the Members, other items which are ready for discussion and matters on which the orders of the Commission have to be sought have been included in Agenda.

(4)

Extraordinary meetings of the Commissions may be called at short notice and matters could also be considered by circulation.

(5)

The quorum for a meeting of the Commission shall be more than half the total number of Members of the Commission.

(6)

- The Chairman and in his absence, the senior-most Member present, shall preside over the meetings of the Commission.
- (7)
- (a)
- The decisions of the Commission, as far as possible, shall be unanimous. If divergent views are held by the members and unanimity cannot be reached at a meeting, the item may be postponed for further consideration only once, and if quantity is not reached even then, the decision shall be taken by exercise of votes. In the case of such urgent matters which cannot be postponed for the subsequent meeting the decision will be through exercise of votes.
- (b)
- The dissenting Member may record his note of dissent against a majority decision which shall be part of the proceeding but such note of dissent itself shall not be sent to office or any other person or authority.
- (c)
- Decisions of the Commission under this Regulation shall be taken by majority of more than half the total number of Members of the Commission attending the meeting irrespective of that fact that any member abstains from expressing his opinion or from voting.
- 4.
- Minute Book.
- (1)
- All proceedings of the Commission shall be recorded in the Minute Book which shall be in the personal custody of the Secretary, the proceedings shall be written by the Secretary or under his supervision.
- (2)
- The proceeding shall be signed by the Members present.
- (3)
- A copy of the proceedings shall be placed in the relevant file or files, as the case may be.
- (4)
- Copies of the proceedings shall be sent by the Secretary to all the Members, and to the concerned officers and section officers, who shall, maintain them with Agenda and its synopsis in proper order for ready reference.
- 5.
- Procedure (General).
- (1)
- For convenient transaction of its business the allocation of work among Members (including Chairman) shall, from time to time be made by the Commission. In urgent cases the Chairman may allot any work to any member and place before the next meeting.
- (2)
- For convenient and expeditious transaction of its business the Commission may constitute a committee or committees from amongst its Members or authorize any member for performance of any specified work or transaction of any specified business.
- (3)
- The allocation made under the above clauses may be amended altered or modified as and when deemed necessary.
- (4)
- The senior-most Member shall be the Convenor of the committee.
- (5)
- Decisions of the Committee shall, except in matters in respect of which the Commission has otherwise directed, be subject to approval of the Commission.
- (6)
- Member of the Committee may seek the opinion of any other member or Members on any issue under consideration of the Commission and may send the file/papers to all or any of the members for the purpose.
- 6.
- Interview Board.
- (1)
- The Commission shall constitute Board or Boards for interview/ viva-voce test of candidates for various posts for which selection is to be made.

(2)

Single Member or Multiple Member Interview Board shall be constituted taking into consideration the grades, status and importance of the posts in respect of which the selection is to be made.

(3)

Ordinarily, a single Board shall be constituted for selection to a particular post or posts, but where the number of candidates is large, the Commission may constitute more than one Board for the purpose.

(4)

Where more than one Multiple Member Board are constituted the constitution of the Boards may be changed by, rotation as often as the Commission thinks proper.

(5)

The programme of interview shall be fixed by the Commission.

(6)

The intimation for interview will be sent to a candidate 21 (twenty-one) days in advance.

(7)

If a member is unable to attend the interview fixed for him the Chairman may authorise any other Member to hold the interview in his place and this fact shall not invalidate the proceedings of such selection.

(8)

If a Member or a Multiple Member Board is unable to attend, or has to leave the Interview Board during the course of its sitting and an alternative arrangement cannot be made the other remaining member or members, as the case may be, may hold or continue to hold the interview and the proceedings of the Board shall not be vitiated on the ground that the Member was absent from the sitting of the Board. This also applies in the case of experts if there are more than one expert in the Board.

(9)

The senior-most Member shall preside over the Interview Boards. The proceedings of the Interview Boards shall be placed before the Commission for approval as early as possible, where after the recommendation will be issued. Such approval may be obtained by circulation, by hand or in a meeting of the Commission.

7.

Experts.

(1)

Subject to Regulation 4 of the Uttar Pradesh Secondary Service Education Commission First Regulations, 1983, the Commission shall prepare a panel of experts for each subject in which the Commission holds interviews or may constitute a committee for the purpose. Different Committees may be constituted for different subjects. The reports of the Commission shall be laid before the Commission for approval. The Commission may make such alteration or additions as it deems fit in the panels prepared by the Committee.

(2)

The Panel so prepared and approved by the Commission may be reviewed by the Commission from time to time.

(3)

The panel of experts shall be a secret document and it shall be kept in safe custody by the Secretary under sealed cover and shall be submitted to Member on requisition in writing.

(4)

No person shall be appointed as an expert if he is a relative, as defined in Schedule II of the Intermediate Education Act, 1921, of any serving member or the officer of the Commission.

8.

Procedure for selection and interview.

(1)

The pro forma for submission of applications and the procedure and methodology for-

(a)

registration of applications received,

(b)

preliminary scrutiny if any considered necessary for short listing of applicant candidates,

(c)

organization including fixing of subject and syllabus, etc. of the competitive examination of any to be held.

(d)

organising interviews,

(e)

evaluation of candidates consequent to the interview,

(f)

preparation of final select lists and other allied matters, will be as decided by the Commission from time to time.

(2)

Except the senior-most teachers whose names are forwarded for the post of the Principal/Headmaster in accordance with Rule 4 of the Uttar Pradesh Secondary Education Service Commission Rules, 1983, no candidate shall be admitted to the examination or interview unless he has duly applied on prescribed form and has deposited the prescribed fees in accordance with the prescribed mode within the specified time.

(3)

No application received after the last date fixed for receipt of application shall be accepted.

(4)

The interview shall be conducted at Allahabad in the Office of the Commission or at any other place or places which the commission may decide.

(5)

If at any stage, it appears to the Commission that written examinations are necessary to ensure selection of better candidates, the Commission shall decide the place, date, time and centre of the examination and shall also decide all relevant details of the same.

(6)

A member of the Commission or expert shall not be a member of an Interview Board if any candidate appearing before the Interview Board is related to him. Where a candidate is related to such member or, for any other reason he does not want to associate himself with the interview of any particular candidate, he shall bring the fact to the notice of the Commission. Thereupon, he shall withdraw from the Interview Board or such candidate may be directed to appear before another Interview Board functioning concurrently.

9.

Finance.

- The Secretary shall submit to the Commission quarterly report of the headwise expenditure incurred for its information and direction, if any. The Secretary shall be assisted by the Senior Accounts Officer in the correct maintenance of accounts, and relevant records as also preparation of periodical returns and reports related to Commission finances. The Senior Accounts Officer shall be responsible to the Secretary for day-to-day work as also for the efficient working of the Accounts Section.

10.

Internal Administration.

(1)

Subject to provisions of the U.P. Secondary Education Service Commission and Selection Boards Act, 1982, the Rules and Regulations framed thereunder the Chairman shall exercise such administrative disciplinary and financial powers as are delegated to him from time to time.

(2)

(i)

The Chairman shall be the controlling officer of the members of the Commission for purposes of sanction of casual leave and passing of T.A. Bills. He shall also exercise administrative control over and will be the controlling officer of the Secretary.

(ii)

The Secretary shall be controlling officer or officers other than himself and of Group C and Group D employees who shall be subordinate to the Secretary.

(3)

The matters relating to sanction of casual leave and tour programme of the personal staff of the Chairman and the personal staff of other Members of the Commission will be dealt by the Chairman and the members respectively.

(4)

The appointment of employees, of whom the Commission is the appointing authority including Group C and Group D employees, shall be made by the Secretary with the prior approval of the Commission.

(5)

The Commission may recommend to the State Government the transfer of Secretary on any other officer of the Commission, appointed by the Government, if the Commission is not satisfied with the work and conduct of such officer.

11.

General.

(1)

All decisions and proceedings of the Commission shall, unless otherwise directed, be secret.

(2)

Any Member may call for any file, paper or information from the office through the Secretary.

Note-Papers do not mean examination papers and information does not mean information regarding marks obtained by the candidates before interview for the post or service is over as also details of roll numbers of examiners to whom particular answer book has gone.

12.

Office hours and holidays.

(1)

The office hours of the Commission shall ordinarily be from 10 a.m. to 5 p.m. but, as and when the official work so warrants, the officials may be asked, to work or called before and after the regular hours.

(2)

The Commission shall observe holidays as per list of the Holidays, of U.P. Public Service Commission.

13.

Residuary matte.

- Subject to the provision of the rules and the first Regulation and the subsequent Regulations made by the Commission, the Commission may deal with any matter, not specifically provided for in such manner as it deems fit, and report the matter to the Government forthwith for information and direction, if any.

14.

Interpretation.

- If any doubt arises as to the interpretation of these Regulations, the matter shall be referred to the Government the interpretation made by the Government shall be final.

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